

COMMITTEE ON GOVERNMENT
SENATE AMENDMENTS TO H.B. 2745
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 41-1153, Arizona Revised Statutes, is amended to
3 read:

4 41-1153. Disobedience of subpoena as legislative contempt

5 A. If a witness neglects or refuses to obey a legislative subpoena,
6 or, appearing, neglects or refuses to testify, ~~the senate or the house~~
7 ~~may, by resolution entered in the journal, commit him~~ UNLESS ANOTHER
8 PROCEDURE IS PROVIDED BY THE RULES OF EITHER HOUSE OF THE LEGISLATURE, THE
9 WITNESS MAY BE COMMITTED for contempt BY EITHER OF THE FOLLOWING:

10 1. AFTER THE WITNESS IS GIVEN NOTICE AND AN OPPORTUNITY FOR A
11 HEARING TO PRESENT EVIDENCE, AT THE DISCRETION OF THE CHAIRPERSON, TO SHOW
12 CAUSE AS TO WHY THE WITNESS IS NOT IN CONTEMPT, AN ORDER OF CONTEMPT BY
13 ANY COMMITTEE OR THE PRESIDENT OF THE SENATE OR SPEAKER OF THE HOUSE OF
14 REPRESENTATIVES THAT FINDS THAT THE WITNESS HAD KNOWLEDGE OF THE SUBPOENA,
15 HAD THE ABILITY TO COMPLY WITH THE SUBPOENA AND FAILED TO COMPLY WITH THE
16 SUBPOENA.

17 2. A RESOLUTION ENTERED IN THE JOURNAL BY THE SENATE OR THE HOUSE
18 OF REPRESENTATIVES.

19 B. A witness ~~neglecting~~ WHO NEGLECTS or ~~refusing~~ REFUSES to attend
20 in obedience to a subpoena may be arrested by the sergeant-at-arms [OR A
21 COUNTY SHERIFF] and brought before the senate or house ~~upon~~ OF
22 REPRESENTATIVES ON authority of EITHER OF THE FOLLOWING:

23 1. A copy of the ORDER OF CONTEMPT THAT IS SIGNED BY THE
24 CHAIRPERSON OR THE PRESIDENT OF THE SENATE OR THE SPEAKER OF THE HOUSE OF
25 REPRESENTATIVES AND THAT IS COUNTERSIGNED BY THE SECRETARY OF THE SENATE
26 OR CHIEF CLERK OF THE HOUSE OF REPRESENTATIVES.

Senate Amendments to H.B. 2745

1 2. A COPY OF THE resolution THAT IS signed by the president OF THE
2 SENATE or speaker OF THE HOUSE OF REPRESENTATIVES, ~~—~~ and THAT IS
3 countersigned by the secretary OF THE SENATE or chief clerk OF THE HOUSE
4 OF REPRESENTATIVES.

5 Enroll and engross to conform

6 Amend title to conform

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